The State Of Karnataka vs Kumar on 26 December, 2018

IN THE COURT OF THE L ADDITIONAL CITY
CIVIL & SESSIONS JUDGE, BENGALURU

Dated this the 26th Day of December 2018

- : PRESENT: -

SMT. SUSHEELA B.A. LL.B.
L Additional City Civil & Sessions Judge,
BENGALURU

SPECIAL C.C. No. 65/2018

COMPLAINANT The State of Karnataka,
By Parappana Agarahara Police Station,
Bengaluru
Public Prosecutor-Bangalore

/ VERSUS /

ACCUSED Kumar,
S/o. Ningana Gowda, 40 years,
R/at. No.22, Veerabhadraswamy Nilaya,
Shivareddy Layout, Naganathapura,
Electronic City Post,
Bengaluru-100
Sri.M.K.C.-Advocate

1	Date of commission of offence	02-12-2015
2	Date of report of occurrence	02-12-2015
3	Date of arrest of Accused Date of release of Accused Period undergone in custody by Accused	ON BAIL
4	Date of commencement of evidence	23-08-2018
5	Date of closing of evidence	18-12-2018

6	Name of the complainant	Shobha S. Khatavtkar
7	Offences complained of	Sec. 370-IPC & Sec.3, 14 Child Labour (P & R) Act
8	Opinion of the Judge	Accused is acquitted
9	Order of Sentence	As per the final order

JUDGMENT

This charge sheet filed by Police Sub-Inspector, Parappana Agarahara Police Station-Bengaluru, against accused for the offences punishable under Section 370 of I.P.C and Section 3 and 14 of Child Labour (Prohibition & Regulation) Act.

2. The case of the prosecution in brief, as per the prosecution papers, is stated as follows:

> The accused being the owner was running Sri. Lakshmi Janardhana Cake Palace, at Rayasandra Main Road, Naganathapura, Bengaluru, situated within the jurisdiction of Parappana Agarahara Police Station, he employed Cw.2- Vasntha, a minor boy in his bakery and was forcibly extracting work from him which are endanger to his life and exploited him by extracting work for more hours by paying meager salary. On receiving the said information, Cw.1-Shobha.S.Katavtkar-

3 Spl.C.C.65/2018 Dy.S.P. raided the said bakery along with Cw.3-Prathap Raj, Cw.7-Mariswamy Gowda on 02-12-2015 at about 02.45 p.m., and rescued the child labour-Cw.2, conducted mahazar there itself, brought Cw.2 to Parappana Agarahara Police station, produced before the SHO and lodged complaint. On the basis of said complaint, the Police registered the case against the accused for the offences punishable under Section 370 of I.P.C, Section 3 and 14 of Child Labour (Prohibition & Regulation) Act.

3. The Investigating Officer has investigated the same and filed charge sheet against accused for the offences punishable under Section 370 of I.P.C and Section 3 and 14 of Child Labour (Prohibition & Regulation) Act. Thereafter, after filing the charge sheet, as usual the summons was issued to accused, he appeared before the Court and was enlarged on bail by executing personal bond and producing surety. The Committal Court furnished copy of charge sheet to accused as contemplated under Section 207 of Cr.P.C. The Committal Court passed an order for committing the case to the Hon'ble Principal City Civil & Session Judge-Bengaluru, since the victims are minors and the said case is exclusively triable by the 4 Spl.C.C.65/2018 Child Court and in turn the said case was made over to this Court for further proceedings.

4. After receiving the record by this Court, the accused appeared before the Court. Thereafter, the learned advocate for accused submitted that there is no arguments before framing charge and requested to frame charge. On perusal of charge sheet there is prima-facie material available on record to frame charge against accused. Hence the charges were framed under section 370 of IPC and Section 3 and 14 of Child Labour (Prohibition & Regulation) Act. The contents of charge read over and explained to the accused in Kannada. The accused pleaded not guilty and submit crimes to be tried. Thereafter the case against accused was set down for prosecution evidence.

5. The prosecution in order to establish the guilt of the accused has examined 9 witnesses as Pw.1 to Pw.9, got marked as many as 11 documents as Ex.P1 to Ex.P11 and closed its side evidence. In view of incriminating evidence appeared against the accused, he was examined under Section 313 of Cr.P.C., by recording his statement. The accused denied the 5 Spl.C.C.65/2018 alleged incriminating

evidence appeared against him as false. The accused complied the provision of Section 437-A of Cr.P.C. by executing personal bond and surety bond. Thereafter arguments heard from both the sides and the matter is set down for judgment.

6. Having regard to the facts, circumstances and arguments submitted by both the sides, the following points that arise for my consideration are as under:-

> 1. DgÉÆÃ¦AiÀÄÄ ¨ÉAUÀ¼ÀÆgÀÄ £ÀUg À À ¥Àg¥ À Àà£À CUÀæºÁgÀ ¥ÉÇºÃ¸ï oÁuÁ ¸Àgº À ¢À £ Ý À £ÁUÀ£ÁxÀ¥ÀÅgÀ gÁAiÀÄ¸ÀAzÀæ ªÀÄÄRågÀ¸A ÉÛ iÀÄºègÄÀ ªÀ ²æÃ ®Qëä d£ÁzÀð£À PÉÃPï ¥Åå¯É¸ï£À ªÀiÁºÃPÀ£ÁVzÀÄÝ ¢£ÁAPÀB02-

12-2015gÀAzÀÄ ªÀÄzsÁåºÀß 02.45 UÀAmÉAiÀÄ ¸ÀªÀÄAiÀÄzÀºè ¸ÁQë-1 gÀªg À ÀÄ ¸ÁQë-3 ªÀÄvÀÄÛ 7 gÀªg À ÉÆA¢UÉ DvÀ£À CAUÀrUÉ zÁ½ £Àq¹ É zÁUÀ ¸ÁQë-2 C¥Áæ¥ÀÛ ¨Á®PÀ££ À ÀÄß PÀgvÉ A À zÀÄ CªÀ£À EZÉU á É «gÀÄzÀª Þ ÁV CPÀæªÀÄªÁV PÉ®¸À ªÀiÁr¹ ¨sÁgÀwÃAiÀÄ zÀAqÀ ¸ÀA»vÉ PÀ®A.370 gÀrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £À ÀÄß J¸ÀVzÁÝgA ÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ ¥Àr¸ÀÄvÁÛgAÉ iÉÄ?

2. DgÉÆÃ¦AiÀÄÄ ªÉÄÃ¯É ºÉÃ½zÀ ¢£ÁAPÀ ¸ÀªÀÄAiÀÄ ºÁUÀÄÁ ¸ÀAzÀ¨ð Às zÀºè ¸ÁQë-2 C¥Áæ¥ÀÛ ¨Á®PÀ££ À ÀÄß PÉ®¸ÀPÉÌ £ÉÃ«Ä¹PÉÆAqÀÄ ¨É¼UÀ ÉÎ 6.00 UÀAmÉ¬ÄAzÀ gÁwæ 10.00 UÀAmÉªg À U É É zÀÄr¹PÉÆAqÀÄ, PÀ¤µÀ× ªÉÃvÀ£ª À £ À ÀÄß PÉÆqÀz,É ¸ÀjAiÀiÁV Hl ªÀ¸w À ªÀåªÀ¸ÉÜ ªÀiÁqÀzÉ ¨Á®PÀ£À DgÉÆÃUÀåPÉÌ ªÀiÁgÀPª À ÁUÀÄªÀ ªÁvÁªÀgt À zÀºè MvÁÛAiÀÄ¥ÀÇªÀðPÀªÁV zÀÄr¹PÉÆAqÀÄ CPÀæªÀÄ ¯Á¨Àª s £ À ÄÀ ß ªÀiÁr PÀ®A 3 ¸À»vÀ PÀ®A 14 ZÉÊ¯ïØ ¯ÉÃ§gï (¥Áæ»©µÀ£ï CAqï gÉUÀÄå¯ÉÃµÀ£ï) DPïÖ gÀrAiÀÄºè ²PÁëºÀðªÁzÀ C¥ÀgÁzÀª s £À ÀÄß J¸ÀVzÁÝgA ÀÉ zÀÄ ¥Áæ¹PÀÆåµÀ£ï ¥ÀPÀëzÀªg À ÀÄ ¸ÀA±ÀAiÀiÁwÃvÀª À ÁV gÀÄdÄªÁvÀÄ¥Àr¸ÀÄvÁÛgA É iÉÄ?

3. AiÀiÁªÀ DzÉÃ±À?

7. My findings on the above points are as under:-

> 6 Spl.C.C.65/2018 Point No.1: In the Negative.

Point No.2: In the Negative.

Point No.3: As per the final orders for the following:

> REASONS

8. Point No.1 and 2:- As these points are inter-related, hence I have taken up together for my consideration in order to avoid repetition of reasons.

9. In order to prove the alleged offences against the accused, the prosecution has examined in all 9 witnesses as Pw.1 to Pw.9, got marked 11 documents as Ex.P1 to Ex.P11. As per the prosecution case,

Pw.1 is the complainant, Pw.2 is member of raiding team, Pw.3, Pw.4, Pw.6 and Pw.7 are independent witnesses, Pw.5 is the victim boy, Pw.8 and Pw.9 are the Police personnel and Investigation Officer. Hence, this Court shall proceed to see whether the available evidence of said witnesses are sufficient for establishing the alleged offences against accused.

10. In order to establish the alleged offences against accused, the prosecution is required to prove that the accused 7 Spl.C.C.65/2018 being the owner was running Sri. Lakshmi Janardhana Cake Palace, at Rayasandra Main Road, Naganathapura, Bengaluru, situated within the jurisdiction of Parappana Agarahara Police Station, he employed Cw.2-Vasntha, a minor boy in his bakery and was forcibly extracting work from him which are endanger to his life and exploited him by extracting work for more hours by paying meager salary and thereby committed offences punishable under Section 370 of I.P.C and Section 3 and 14 of Child Labour (Prohibition & Regulation) Act. Hence this Court shall proceed to see whether the prosecution has succeeded in establishing all the above said ingredients of the alleged offences against the accused beyond all reasonable doubt.

11. Before venturing into scan the available material evidence on record, it is necessary to mention the very definition of offences under Section 370 of I.P.C and Section 3 and 14 of Child Labour (Prohibition & Regulation) Act.

Section 370 of I.P.C defines that:

> Trafficking of persons-[1] Whoever, for the purpose of exploitation,(a) recruits, (b)transports, (c)harbours,
>
> (d)transfers, or (e) receives, a person or persons, by-

First -using threats, or Secondly-using force, or any 8 Spl.C.C.65/2018 other form of coercion, or Thirdly -by abduction, or Fourthly -by practicing fraud, or deception, or Fifthly

-by abuse of power, or Sixthly -by inducement, including the giving or receiving of payments or benefits, in order to achieve the consent of any person having control over the person recruited, transported, harboured, transferred or received, commits the offence of trafficking.

Section 3 of The Child Labour (Prohibition and Regulation) Act, 1986 defines that:

> Prohibition of employment of children in any occupation and process: (1) No child shall be employed or permitted to work in any occupation of process. (2) Nothing in sub-section(a) shall apply where the child,-(a)helps his family or family enterprise, which is other than any hazardous occupations or process set forth in the Schedule, after his school hours or during vacations;
>
> Section 14 of The Child Labour (Prohibition and Regulation) Act, 1986 defines that: Penalties.-(1) Whoever employs any child or permits any child to work in contravention of the provisions of section 3 shall be punishable with imprisonment

for a term which shall not be less than three months but which may extend to one year or with fine which shall not be less than ten thousand rupees but which may extend to twenty thousand rupees or with both. (2)Whoever, having been convicted of an offence under section 3, commits a like offence afterwards, he shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to two years.(3)Whoever, (a) fails to give notice as required by section 9; or (b) fails to maintain a register as required by section 11 or makes any false entry in any such register; or (c) fails to display a notice containing an abstract section 3 and this section as required by section 12; or (d)fails to comply with or contravenes any other provisions of this Act or the rules made there under,Shall be punishable with simple imprisonment which may extend to one month

9 Spl.C.C.65/2018 of with fine which may extend to ten thousand rupees or with both.

With these observations, now left with the available materials produced by the prosecution to consider whether the prosecution proved the alleged offences against accused beyond all reasonable doubt or it probalises the defense of accused.

12. By going through the evidence of Pw.1-Shobha.S. Katavkar-Dy.S.P. C.I.D., she has deposed in respect of raid conducted on 02-12-2015 after receiving information that at Sri. Lakshmi Janaradhana Cake Palace, Naganathapura, Rayasandra Main Road, within the jurisdiction of Parappana Agarahara Police Station, rescued Cw.2-Vasanth. Further she has deposed that at that time Cw.5 and Cw.6 also accompanied with her. Cw.4-Labour Inspector also accompanied with her to raid the said cake palace. On enquiry with the victim he has stated that since from three months he is working there by force, the accused used to extract work from him from 06.00 a.m., to 10.00 p.m., by paying Rs.2,000/= as monthly salary. She has conducted mahazar as per Ex.P1 from 02.45 p.m., to 03.30 p.m., and her signature is Ex.P1(a).

10 Spl.C.C.65/2018

13. Further she has deposed that at the time of raid the accused was not there, but one Dinesh who was looking ater the said Cake Palace was present, she intimated about the raid, went to Parappana Agarahara Police station, lodged complaint as per Ex.P2 and handed over the victim boy with Panchanama to the SHO. She has also issued notice to Panchas as per Ex.P3 and her signature is Ex.P3(a). The accused tested her veracity by eliciting some commission and omission, except denial suggestion, nothing has been elicited favourable to the defense taken by him. At this stage, this Court feels to observe that since this witness is Police witness, uless and until produces corroborative evidence of this witness through independent witnesses, it is not safe to accept the alleged offences against accused.

14. By going through the evidence of Pw.2-Shobha. M.Patil- Senior Labour Inspector, she has supported to the case of prosecution in her chief examination and also in respect of rescuing of Cw.2-Vasanth-Child Labour and also process of conducting mahazar as per Ex.P1 and her signature is Ex.P1(b). Further she has deposed that complainant lodged complaint 11 Spl.C.C.65/2018 and

handed over the rescued boy to the police on the same day. The accused tested her veracity by eliciting some commission and omission, except denial suggestion, nothing has been elicited favourable to the defense taken by him. Here it is relevant to note it is quite natural she being Senior Inspector, she has supported to the case of the prosecution. At the same time it is necessary to consider independent witnesses evidence whether they have supported to the case of prosecution or not to believe the alleged offences against accused.

15. By going through the evidence of Pw.5-the alleged child labour, he has deposed that he doesn't know the accused and what he is doing; he doesn't know anything about the case lodged against him. The prosecution treated this witness as hostile to the case of prosecution and suggested each and every word of Ex.P5-the statement alleged to have been given by this witness in respect of him, working under the accused in Sri. Lakshmi Janardhana Bakery from 06.00 a.m., to 10.00 p.m., and receiving salary of Rs.2,000/- per month and the accused extracting work from him by ill-treating and also without giving leave to him, for that he has denied the same. Through the 12 Spl.C.C.65/2018 material witness-the victim boy, the prosecution fails to establish the alleged offences against accused beyond all reasonable doubt.

16. By going through the evidence of Pw.6-Manjula, the mother of alleged victim child, she has deposed that Vasanth is her son, he has studied up to S.S.L.C., his age is 15 years, Ramanna is her sister's husband, she has not seen the accused earlier any where at any point of time and her son worked in a bakery run by the accused during the month of Decenber-2015 and She has not given any statement before police. The prosecution treated this witness as hostile to the case of prosecution and suggested each and every word of Ex.P6, for that she has denied the same. Through the mother of alleged child labour, the prosecution fails to establish the alleged offences against accused beyond all reasonable doubt.

17. By going through the evidence of Pw.3-Prathap Raj, he has deposed that he has not seen the accused earlier, he didn't went near any bakery or shop, the police had not rescued any child labour before him and not conducted any mahazar as 13 Spl.C.C.65/2018 per Ex.P1 but admitted his signature Ex.P1(c). but he doesn't know what had written in Ex.P1, the police not conducted any Mahazar any where. This witness also turned hostile to the case of prosecution. The prosecution suggested each and every word of Ex.P1 in respect of process of conducting mahazar from 02.45 p.m., to 03.30 p.m., on 02-12-2015 in Lakshmi Janardhana Cake Palace and rescued Cw.2-Vasanth-the child Labour, for that he has denied the same. Through the evidence of this witness, the prosecution fails to establish the alleged offences against accused beyond all reasonable doubt.

18. By going through the evidence of Pw.4-Kumar, he has deposed that on 02-12-2015 the police not raided the accused's shop, not rescued child labour in his shop, at no point of time the child labour by name-Vasantha worked in the shop of accused and he has not given any statement before police. The prosecution treated this witness as hostile to the case of prosecution and suggested each and every word of Ex.P4, for that he has denied the same. Through the independent witness, the prosecution fails to establish the alleged offences against accused and also his evidence isn't 14 Spl.C.C.65/2018 supported by the evidence of Pw.1 and Pw.2.

19. By going through the evidence of Pw.7-Dishesh, he has deposed that he doesn't know the accused, he has not seen Sri. Lakshmi Janaradhana Cake Palace at Naganathapura, but he has seen a bakery, since he was working there, but he doesn't know the child labour-Vasanth. He has not given any statement before police. The prosecution treated this witness as hostile to the case of prosecution and suggested each and every word of Ex.P7, for that he has denied the same and it is his definite stand that he has not given any statement as per Ex.P7.

20. By going through the evidence of Pw.9-G.R. Shivashankar- A.S.I., he has deposed that on 02-12-2015 when he was the SHO in the station, he obtained complaint from Cw.1, after its perusal registered the same in Crime No.491/2015 for the offences punishable under Section 370 of I.P.C and Section 3 and 14 of Child Labour (Prohibition & Regulation) Act. He has entered Shara and signed the same as per Ex.P2(b). On the basis of said complaint, he has prepared FIR as per Ex.P11 and his signature is Ex.P11(a). The accused 15 Spl.C.C.65/2018 tested the veracity of evidence of witness by eliciting some commission and omission and except denial suggestion, nothing has been elicited favourable to the defense taken by him. At this stage, the evidence of this witness is a formal one.

21. By going through the evidence of Pw.8-Babu-P.S.I., he has deposed that after receiving record from Cw.12/Pw.9, he has conducted further investigation. He has sent the victim boy to Balakara Bala Mandir. On 03-12-2015 he has recorded statement of Cw.3 to Cw.7, on 04-12-2015 he has recorded statement of Cw.9-Ramanna who has given statement as per Ex.P6. On 05-12-2015 he has recorded statement of Cw.10 as per Ex.P7, on 06-12-2015 he has recorded statement of Cw.9 as per Ex.P4. Further after receiving Aadhar Card and study certificate of victim as per Ex.P8 and Ex.P9 and on receiving age estimation certificate as per Ex.P10 and after closing of investigation, he has filed charge sheet against accused. The accused tested the veracity of evidence of this witness and denied what ever evidence given by him in his chief examination by denial suggestion and Ex.P8 to Ex.P10 are concocted documents, for that he has denied the same. The available 16 Spl.C.C.65/2018 evidence of Pw.1 and Pw.2 not supported to the prosecution case through the evidence of Pw.3 to Pw.7, when such being the case, the evidence of this witness is a formal one.

22. The oral and documentary evidence placed on record by the prosecution is insufficient to prove the alleged offences against accused beyond all reasonable doubt. The defense of the accused and the facts and circumstances of the case including materials on record discussed above probablizes the defense of the accused rather than the case of the prosecution.

23. In view of aforesaid reasons, I hold that the evidence of Pw.1 to Pw.9 and documentary evidence as per Ex.P1 to Ex.P11, placed on record in respect of alleged offences, is insufficient to prove that the accused being the owner was running Sri. Lakshmi Janardhana Cake Palace, at Rayasandra Main Road, Naganathapura, Bengaluru, situated within the jurisdiction of Parappana Agarahara Police Station, he employed Cw.2-Vasntha, a minor boy in his bakery and forcibly extracting work from him which are endanger to his life and exploited him by extracting work for more hours by paying meager salary and 17 Spl.C.C.65/2018 thereby committed offences punishable under Section 370 of I.P.C and Section 3 and 14 of Child Labour (Prohibition & Regulation) Act, beyond all reasonable doubt. Consequently, I hold Point No.1 and 2 in the "Negative".

24. Point No.3:- For the above said reasons and discussions on Point No.1 and 2, I hold that the accused is entitled for an order of acquittal. Hence, in the final result, I proceed to pass the following:

ORDER Acting under Section 235(1) of Cr.P.C., the accused is acquitted for the offences punishable under section 370 of IPC, Section 3 and 14 of Child Labour (Prohibition & Regulation) Act.

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His bail bond and surety bond stand
cancelled.
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(Dictated to the Judgment Writer, transcribed and typed by her. It is then corrected, signed and pronounced by me in open court on this the 26th Day of December 2018.) (SUSHEELA) L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE 18 Spl.C.C.65/2018 ANNEXURE LIST OF WITNESSES EXAMINED ON BEHALF OF PROSECUTION Pw.1 Shobha.S. Khatavkar Cw.1 23-08-2018 Pw.2 Shoba M. Patil Cw.4 05-09-2018 Pw.3 Pratap Raj Cw.3 18-09-2018 Pw.4 Kumar Cw.10 28-09-2018 Pw.5 Victim Cw.2 10-10-2018 Pw.6 Manjula Cw.8 10-10-2018 Pw.7 Dinesh Cw.11 25-10-2018 Pw.8 Babu Cw.14 02-11-2018 Pw.9 G.R. Shivashankar Cw.13 18-12-2018 LIST OF DOCUMENTS MARKED ON BEHALF OF PROSECUTION Ex.P 1 Mahazar Pw.1 23-08-2018 Ex.P 1a Signature of Pw.1 Pw.1 23-08-2018 Ex.P 1b Signature of Pw.2 Pw.2 05-09-2018 Ex.P 1c Signature of Pw.3 Pw.3 18-09-2018 Ex.P 2 Complaint Pw.1 23-08-2018 Ex.P 2a Signature of Pw.1 Pw.1 23-08-2018 Ex.P 2b Signature of Pw.9 Pw.9 18-12-2018 Ex.P 3 Police notice Pw.1 23-08-2018 Ex.P 3a Signature of Pw.1 Pw.1 23-08-2018 Ex.P 4 Statement of Pw.4 Pw.4 28-09-2018 Ex.P 5 Statement of Pw.5 Pw.5 10-10-2018 Ex.P 6 Statement of Pw.6 Pw.6 10-10-2018 Ex.P 7 Statement of Pw.7 Pw.7 25-10-2018 Ex.P 8 Copy of Aadhar card Pw.8 02-11-2018 19 Spl.C.C.65/2018 Ex.P 8a Signature of Pw.8 Pw.8 02-11-2018 Ex.P 9 Copy of I.D. card Pw.8 02-11-2018 Ex.P 9a Signature of Pw.8 Pw.8 02-11-2018 Ex.P 10 Age estimation Pw.8 02-11-2018 certificate Ex.P 10a Signature of Pw.8 Pw.8 02-11-2018 Ex.P 11 FIR Pw.9 18-12-2018 Ex.P 11a Signature of Pw.9 Pw.9 18-12-2018 LIST OF MATERIAL OBJECTS MARKED ON BEHALF OF PROSECUTION

-NIL-

LIST OF WITNESSES EXAMINED, DOCUMENTS MARKED & MO.S MARKED ON BEHALF OF DEFENCE

-NIL-

L ADDL.CITY CIVIL & SESSIONS JUDGE, BANGALORE